8.	22CV1669	LESARRA HOMEOWNERS ASSOC. v. SELVAN
Motion for Attorney's Fees		

Plaintiff Lesarra Homeowners Association ("Plaintiff") brings a Motion for Attorneys' Fees against Defendant Madeswaran Selvan ("Defendant"). Plaintiff argues that it is the prevailing party and therefore, Plaintiff is entitled to seek fees based upon four distinct theories: Civil Code § 5975(c), the CC&Rs, Civil Code § 1717 and case law. The Court granted summary adjudication on the First and Fourth Causes of Action but denied summary adjudication on the Third Cause of Action, finding that there was a triable issue of material fact regarding proper notice.

Based on the record, the Court agrees that Plaintiff is the prevailing party and thus entitled to reasonable attorney's fees and costs.

The determination of what constitutes reasonable attorney's fees is committed to the sound discretion of the court. (*Westside Community for Independent Living, Inc. v. Obledo* (1983) 33 Cal.3d 348, 355.) The trial court has expertise of its own in the matter of the value of legal services performed. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.) The Court walks through the steps as outlined by *Serrano III v. Priest* (1977) 20 Cal.3d 25, 49.

In determining the lodestar figure, the Court addresses whether the claimed hourly rate of $550/hour is reasonable. The initial Complaint was filed on October 26, 2022. Attorney Michael Vinding billed 160.6 hours and Attorney Graham Scott billed 15.3 hours ($450/hour) and paralegal Troy Ellerman billed 40.5 hours ($200/hour). Based on the Declaration of Michael E. Vinding and the prevailing rates of the area, the Court finds the hourly rates to be reasonable. Litigation ensued for about 3 ½ years, so 216.9 hours (an average of 61.97 hours per year) is reasonable.

The cases cited by Defendant are not helpful to his case. In *Heather Farms Homeowners Assn. v. Robinson* (1994) 21 Cal.App.4th 1568, the court specifically found there was no prevailing party. In *Salehi v. Surfside III Condominium Owners Assn.* (2011) 200 Cal.App.4th 1146, the court awarded attorney's fees to the homeowner's association after the pro per homeowner dismissed the majority of her causes of action before trial, finding that the plaintiff did not realize her litigation objectives and that the association realized its litigation objectives and was the prevailing party. Similarly, in this case, Plaintiff realized its litigation objectives through motion practice and the settlement agreement and is the prevailing party.

Defendant next argues that Plaintiff did not support its request for reasonable fees with competent evidence. Civil Code §5975 does not require an "issue-by-issue" or "claim-by-claim" allocation of billing as Defendant requests. Defendant cites *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, but in that case there were no hourly billing entries, only an annual bill. The Court finds that the billing records submitted by Plaintiff are sufficient to establish the time spent.

Defendant argues that Plaintiff's offer to settle attorneys' fees shows that the current amount requested is unreasonable. Again, the case cited by Plaintiff does not apply, because that court granted the fees as requested. *See Almanor Lakeside Villas Owners Assn. v. Carson* (2016) 246 Cal.App.4th 761. Defendant rejected Plaintiff's offer and seemingly refused to engage in further discussions, any regret for not accepting the reduced amount is not grounds to reduce the fees.

The Court disregards Plaintiff's next argument regarding biography and inflammatory narrative.

Regarding Plaintiff's counsel's estimate for future fees, the Court will make an award based on actual time spent and not the estimate. Plaintiff is directed to file and serve a declaration before Monday, April 20, 2026, outlining the time spent reviewing the Opposition, drafting the Reply, and appearing at the hearing (if required). The Court will review Plaintiff's declaration for reasonableness. Plaintiff to file an amended Order concurrently with the declaration. Defendant will be given 120 days from service of the Order to make payment.

TENTATIVE RULING #8: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES IS GRANTED, SUBJECT TO THE FILING OF AN AMENDED DECLARATION AND ORDER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.